

ACTION NO. _____

**IN THE 7TH JUDICIAL CIRCUIT
OF THE STATE OF CHESAPEAKE
IN AND FOR HARRISON COUNTY**

PLAINTIFF_NAME,
Plaintiff,

v.

DEFENDANT_NAME,
Defendant.

MOTION TO INTERVENE AND STAY

NOW COMES the Intervenor, the People of Harrison County, by and through their Assistant District Attorney, **NAME**, and in support of their Motion to Intervene under Har. R. Civ. P. Rule 24 (b), shows this Honorable Court as follows:

GOVERNMENT HAS INTEREST TO INTERVENE

1. The facts of the above captioned cases are subject to an ongoing criminal matter and investigation by various entities of the government.
2. Timely intervention is permitted under Har. R. Civ. P. Rule 24 (b) of which the Government is seeking to intervene under the guise of permissive intervention.
3. It can reasonably be foreseen that this civil action and the ongoing criminal action would share common questions of law or fact, to wit: parallel events, witnesses, evidence, and claims.
4. The position of the Government is that intervention is necessary to protect ongoing the ongoing criminal case and to not argue the merits of the civil claims on behalf of the defendant.
5. The necessity to protect the ongoing criminal action and investigations and to seek hearing instant on staying the proceedings of this cause due to possible civil discovery influence outweighs any possible prejudice or delay to the Plaintiff.

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6. The People and Government would be heavily prejudiced and unduly burdened if this case were to proceed without intervention due to shared questions and overlapping interests.
7. The Court has discretion as to whether to grant intervention and if it will unduly delay or prejudice adjudication of this action.
8. It is the belief of the People through the Assistant District Attorney that this filing serves as satisfaction of Har. R. Civ. P. Rule 24 (c).

CONCLUSION

WHEREFORE, the Intervenor, the People of Harrison County, respectfully requests this Honorable Court to grant the Motion to Intervene and grant a stay of these proceedings until otherwise permitted.

Dated: **DATE**

Respectfully submitted:

name

NAME

Counsel of Record
District Attorney's Office